

The Tea (Registration of Dealers and Declaration of Stocks) Order, 1984

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[Rule THE-TEA-REGISTRATION-OF-DEALERS-AND-DECLARATION-OF-STOCKS-ORDER-1984 of 1984](#)

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[The Tea \(Registration of Dealers and Declaration of Stocks\) Order, 1984](#)

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[In exercise of the powers conferred by Section 3 of the Essential Commodities Act, 1955 \(](#)

[10 of 1955](#)

[\), the Central Government hereby makes the following Order, namely:](#)

[1.](#)

[Short title and commencement.](#)

(1)

This order may be called the Tea (Registration of Dealers and Declaration of Stocks) Order, 1984.

(2)

It shall come into force at once.

2.

Definitions.

- In this Order, unless the context otherwise requires,-

(a)

"commission agent" means a commission agent having in the customary course of business as such agent, authority either to sell tea, or to consign tea for the purpose of sale or to buy tea;

(b)

"dealer" means a dealer in tea, and includes a broker, commission agent, manufacturer and a warehouse keeper;

(c)

"State Order" means any Order issued by any State Government or Union Territory Administration under the provisions of the Essential Commodities Act, 1955 (

10 of 1955

), in relation to tea and in force for time being;

(d)

"tea" means the plant *Camellia sine sis* (L) O Kountze as well as all varieties of the product known commercially as tea made from leaves of the said plant, including green tea;

(e)

"warehouse keeper" means a person who owns or maintains a ware-house wherein tea is stored for the purposes of sale either by auction or otherwise;

(f)

words and expressions, used but not defined herein shall have the meanings respectively assigned to them in the Tea Act, 1953 (

29 of 1953

).

3.

Registration of dealers.

- Notwithstanding anything contained in any State Order, after the expiration of a period of 30 days from the coming into force of this Order, no person shall, if the stocks of tea in his possession exceed [3,000]

[Substituted by Notification No. S.O. 807 (E), dated 4.11.1985.]

kilograms, carry on business as a dealer unless he is registered as such in accordance with the provisions of a State Order.

4.

Returns.

- Every dealer shall furnish fortnightly returns to such authority as may be specified by the State Governments in this behalf by notification in the official Gazette in respect of such stocks of tea held by him as are in excess of [3,000]

[Substituted by Notification No. SO. 807 (E), dated 4.11.1985.]

kilograms.

5.

State Orders to apply.

- The provisions of the State Orders shall apply in respect of any matter for which no provision has been specifically made in this Order.

6.

Repeal and Savings.

(1)

The Tea (Registration of Dealers and Declaration of Stocks) Order, 1983, is hereby repealed.

(2)

Provided that any Order issued and any action taken under the Tea (Registration of Dealers and Declaration of Stocks)

Order, 1983 shall be deemed to have been issued or taken under the provisions of this Order.

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